

CRIMINAL LAW I: FELONIES & ASSIGNED CASE DIGESTS

Statutory Review of Felonies by Omission (RPC & Presidential Decrees) and Complete Case Digest Collection

Covering Dolo, Culpa, Mala Prohibita, Mistake of Fact, Praeter Intentionem, and Quasi-Offenses

PART I: STATUTORY REVIEW ON FELONIES BY OMISSION & AFFIRMATIVE DUTIES

Under Article 3 of the Revised Penal Code, felonies are committed not only by positive acts (commission) but also by omission (inaction or failure to perform a positive duty enjoined by law). Criminal omission requires the existence of a positive legal duty to act, the failure to perform that duty, and the absence of any lawful excuse.

- **Article 116 (Misprision of Treason):** Punishes any citizen who, having knowledge of a conspiracy to commit treason against the Government, conceals or fails to disclose the same as soon as possible to the governor, fiscal, or mayor. This is an explicit crime of passive omission.
- **Article 137 (Disloyalty of Public Officers):** Punishes public officers or employees who fail to resist rebellion by all means in their power, or who continue to discharge duties under rebel control, or accept appointment from them.
- **Article 208 (Dereliction / Tolerance of Offenses):** Penalizes law enforcers and prosecutors who maliciously refrain from instituting prosecution for the punishment of violators of the law, or who tolerate the commission of offenses.
- **Article 213(2)(b) (Frauds Against Public Treasury):** Punishes public officers collecting taxes/fees who voluntarily fail to issue official receipts, or collect sums different from or greater than authorized by law.
- **Article 223 & 224 (Conniving / Evasion through Negligence):** Article 223 penalizes officers who maliciously consent to a prisoner's escape; Article 224 punishes the failure to maintain vigilance resulting in evasion through negligence.
- **Article 234 (Refusal to Discharge Elective Office):** Penalizes any person who, having been elected to a public office, refuses to assume such office or discharge its duties without legal excuse.
- **Article 275(1) (Abandonment of Persons in Danger):** Punishes anyone who fails to render assistance to any person found in an uninhabited place wounded or in danger of dying, when assistance can be rendered without detriment to oneself.
- **Presidential Decree No. 953 (Tree Planting & Conservation):** Requires the planting and maintenance of trees/greenery along roads, waterways, and subdivision open spaces, and penalizes the unauthorized cutting or failure to maintain trees as a malum prohibitum offense.
- **Presidential Decree No. 1153 (Citizen Tree Planting Mandate):** Imposed an affirmative duty on citizens aged 10 and above to plant one tree every month for 5 years (repealed by E.O. 287, but studied as an affirmative statutory duty).

PART II: COMPREHENSIVE CASE DIGESTS

1. People of the Philippines v. Custodio Gonzales, Sr.

Citation: G.R. No. 80762, March 19, 1990 | 183 SCRA 309

Ponente: Sarmiento, J.

Subject / Key Concepts: Proof Beyond Reasonable Doubt; Credibility of Eyewitness Testimony; Unexplained Delay in Reporting; Alibi Supported by Weak Prosecution Evidence.

FACTS:

On the night of February 21, 1981, Lloyd Peñacerrada was killed in Iloilo. Spouses Augusto and Fausta Gonzales surrendered to police, claiming Fausta killed the victim in defense of her honor after an attempted rape.

Months later, the prosecution presented a lone eyewitness, Jose Huntoria, who claimed he saw the spouses, their sons, and the appellant Custodio Gonzales, Sr. surrounding and stabbing the victim. Custodio Gonzales, Sr. maintained his innocence and alibi. The trial court and Court of Appeals convicted him of Murder.

ISSUES:

- 1. Is the uncorroborated, delayed testimony of a lone eyewitness sufficient to prove guilt beyond reasonable doubt?*
- 2. Can alibi prosper when prosecution evidence is unreliable?*

RULING & RATIO DECIDENDI:

1. NO. Witness testimony was vague, inconsistent, and suspicious due to long unexplained delay in reporting. Huntoria could not specify any overt criminal act performed by Custodio.
2. YES. While alibi is weak, it prospers when prosecution evidence fails to overcome the constitutional presumption of innocence. Custodio Gonzales, Sr. was ACQUITTED.

■ EVIDENTIARY STANDARD & EYEWITNESS CREDIBILITY

- Unexplained Delay: Long, unjustified delay of a witness in reporting a crime impairs credibility.
- Presumption of Innocence: Conviction must rest on prosecution strength, not defense weakness.

2. People of the Philippines v. Romana Silvestre and Martin Atienza

Citation: 56 Phil. 353 (1931)

Ponente: Villa-Real, J.

Subject / Key Concepts: Mere Passive Presence; Silence vs. Criminal Omission; Conspiracy; Accomplice Liability; Article 3 and 18, RPC.

FACTS:

Romana Silvestre cohabited with Martin Atienza. On November 25, 1930, Atienza entered a neighbor's house, declared his intention to burn it to avenge himself, and set fire to the roof. Romana stood nearby, listened, and watched the fire without raising an alarm. Forty-eight houses burned down. Both were convicted of Arson—Atienza as principal, Silvestre as accomplice.

ISSUES:

Is a person who is passively present and silent during the commission of a crime criminally liable as an accomplice or by omission?

RULING & RATIO DECIDENDI:

NO. Mere passive presence and silence do not create criminal liability. An accomplice must perform prior or simultaneous acts of material cooperation.

A felony by omission under Art. 3 RPC requires a positive statutory duty to act. Mere failure of a private bystander to prevent a crime or raise an alarm is a moral, not penal, failure. Romana Silvestre was ACQUITTED.

■ MERE PASSIVE PRESENCE & CRIMINAL OMISSION

- Rule on Inaction: Mere presence and silence do not constitute conspiracy or accomplice liability without prior agreement or material aid.
- Requisite of Omission: Criminal omission strictly requires a positive legal duty imposed by statute.

3. Potenciana Evangelista v. People of the Philippines

Citation: G.R. Nos. 108135-36, August 14, 2000 | 338 SCRA 180 / 337 SCRA 671

Ponente: Ynares-Santiago, J.

Subject / Key Concepts: Criminal Intent (Dolo) vs. Good Faith; Section 3(e) of R.A. 3019; Evident Bad Faith vs. Honest Administrative Reliance.

FACTS:

Potenciana Evangelista, Chief of the BIR Revenue Accounting Division, signed a 1st Indorsement confirming a ₱180M tax credit application by Tanduay Distillery, relying on certifications and computations of subordinate examiners. She was convicted by the Sandiganbayan under Sec. 3(e) of RA 3019.

ISSUES:

Can a public officer be convicted under Section 3(e) of RA 3019 for signing official endorsements without proof of bad faith or felonious intent?

RULING & RATIO DECIDENDI:

NO. Section 3(e) requires proof of manifest partiality, evident bad faith, or gross inexcusable negligence.

Good faith and reliance on official reports of subordinates in the regular performance of duties negates criminal intent (dolo). Evangelista was ACQUITTED.

■ DOLO & GOOD FAITH IN PUBLIC FUNCTIONS

- Negation of Dolo: Good faith in administrative processing excludes felonious intent.
- Standard under RA 3019 Sec. 3(e): Error in judgment without corrupt design is not a crime.

4. Juanito R. Rimando v. Commission on Elections and Norma O. Magno

Citation: G.R. No. 176364, September 18, 2009 | 600 SCRA 389 (616 Phil. 562)

Ponente: Leonardo-De Castro, J.

Subject / Key Concepts: Nullum Crimen, Nulla Poena Sine Lege; Strict Construction of Penal Laws; Mala Prohibita; Gun Ban Regulations.

FACTS:

During the 2004 election gun ban, security guards of Rimando's agency were found carrying firearms outside designated posts. COMELEC ordered criminal charges filed against Rimando as president of the security agency.

ISSUES:

Can a corporate officer be held vicariously liable for an election offense committed by subordinates when the statute does not expressly penalize indirect liability?

RULING & RATIO DECIDENDI:

NO. Under 'Nullum crimen, nulla poena sine lege', penal statutes are strictly construed against the State.

While election offenses are mala prohibita, criminal liability is personal. Section 261(q) penalizes the actual person bearing the firearm. COMELEC resolutions were SET ASIDE.

■ STRICT CONSTRUCTION & PERSONAL CRIMINAL LIABILITY

- Maxim: Nullum crimen, nulla poena sine lege.
- Mala Prohibita Scope: Even in mala prohibita crimes, vicarious liability cannot be implied without explicit statutory provision.

5. Dindo Villareal v. People of the Philippines

Citation: G.R. Nos. 151258, 154954, 155101, 178057 & 178080, February 1, 2012 | 664 SCRA 519

Ponente: Sereno, J.

Subject / Key Concepts: Intentional Felony (Dolo) vs. Criminal Negligence (Culpa); Animus Interficiendi (Intent to Kill); Hazing Death of Lenny Villa; Article 365, RPC.

FACTS:

In February 1991, Lenny Villa died from severe physical trauma and pulmonary edema during fraternity initiation rites of Aquila Legis. Fraternity members were charged with Murder under the RPC prior to the Anti-Hazing Law (RA 8049).

ISSUES:

Are fraternity members liable for Intentional Homicide under Art. 249 or Reckless Imprudence Resulting in Homicide under Art. 365?

RULING & RATIO DECIDENDI:

GUILTY OF RECKLESS IMPRUDENCE RESULTING IN HOMICIDE (Art. 365, RPC).

Absence of Animus Interficiendi: Rites were intended to test endurance, not kill. Specific intent to kill was absent.

Presence of Culpa: Inflicting severe physical punishment without medical precautions constituted gross reckless imprudence resulting in death.

■ DOLO VS. CULPA IN PHYSICAL INITIATION RITES

- Intent to Kill (Animus Interficiendi): Essential element for intentional homicide/murder; its absence reduces liability to reckless imprudence.
- Article 365 RPC: Gross lack of foresight during hazardous collective acts constitutes criminal negligence.

6. Melchor Maderazo, et al. v. People of the Philippines

Citation: G.R. No. 165065, September 26, 2006 | 503 SCRA 234

Ponente: Callejo, Sr., J.

Subject / Key Concepts: Unjust Vexation (Art. 287, Par. 2, RPC); Grave Coercion (Art. 286, RPC); Extrajudicial Self-Help Prohibited; Variance Doctrine.

FACTS:

Mayor Maderazo and municipal officials padlocked a leased market stall and seized goods of a delinquent tenant without a court order. They were charged with and convicted of Grave Coercion.

ISSUES:

Did unauthorized padlocking without physical violence against the person constitute Grave Coercion or Unjust Vexation?

RULING & RATIO DECIDENDI:

CONVICTED OF UNJUST VEXATION (Art. 287, Par. 2, RPC). Grave coercion requires actual physical violence or intimidation.

Unjust Vexation punishes any human conduct causing unjustified annoyance or distress. Extrajudicial self-help is strictly prohibited. Police chief was ACQUITTED.

■ UNJUST VEXATION & PROHIBITION OF SELF-HELP

- Unjust Vexation: Broad crime punishing human acts unjustifiably disturbing another's peace of mind.
- Variance Doctrine: Accused can be convicted of lesser included offense proven during trial.

7. United States v. Inocencio Apostol

Citation: 14 Phil. 92 (1909)

Ponente: Carson, J.

Subject / Key Concepts: Criminal Intent (Dolo); Accident Without Fault (Caso Fortuito); Article 12, Paragraph 4, RPC; Absence of Criminal Negligence.

FACTS:

Apostol set fire to brush on his agricultural land. An abnormal, unexpected gust of wind carried burning embers across a wide distance, setting fire to and destroying a neighbor's nipa house. He was convicted of Arson.

ISSUES:

Is an accused criminally liable for damage caused by agricultural burning that spread due to an unexpected, violent gust of wind?

RULING & RATIO DECIDENDI:

NO. Apostol was ACQUITTED. He performed a lawful act on his own property with reasonable care. Damage was caused by mere accident without fault or intention (Caso Fortuito under Art. 12, Par. 4, RPC).

■ EXEMPTION BY MERE ACCIDENT (CASO FORTUITO)

- Requisites of Art. 12(4) RPC: (1) Lawful act; (2) Due care; (3) Injury caused by mere accident; (4) Without fault or intention.

8. United States v. Mariano Catolico

Citation: 18 Phil. 504 (1911)

Ponente: Moreland, J.

Subject / Key Concepts: Actus Non Facit Reum Nisi Mens Sit Rea; Rebuttal of Presumed Criminal Intent; Malversation of Public Funds.

FACTS:

A Justice of the Peace had ₱800 cash appeal bonds in custody. When appeals were dismissed, he paid the money to the prevailing landowner under an honest belief that the dismissal authorized him to satisfy the judgment. He was convicted of Malversation.

ISSUES:

Is a public officer guilty of Malversation when funds are disbursed under an honest mistake of law and in good faith?

RULING & RATIO DECIDENDI:

NO. Catolico was ACQUITTED. Maxim: 'Actus non facit reum nisi mens sit rea' (The act does not make a person guilty unless the mind is guilty). Presumption of felonious intent is rebutted by clear proof of good faith.

■ ACTUS NON FACIT REUM NISI MENS SIT REA

- Felonious Mind Required: An act without a guilty mind does not generate criminal liability.

- Rebuttable Presumption: Presumption of criminal intent yields to positive evidence of good faith.

9. People of the Philippines v. Eutiquia Carmen, et al.

Citation: G.R. No. 137268, March 26, 2001 | 355 SCRA 267

Ponente: Quisumbing, J.

Subject / Key Concepts: Murder vs. Reckless Imprudence Resulting in Homicide (Art. 365, RPC); Absence of Intent to Kill; Faith-Healing Exorcism.

FACTS:

Religious faith healers subjected a 13-year-old boy to violent physical acts (banging head, pounding chest, submersion, knife poke) during an exorcism ritual to cast out spirits, causing his death. Trial court convicted them of Murder.

ISSUES:

Did fatal physical acts during an exorcism constitute Murder or Reckless Imprudence Resulting in Homicide?

RULING & RATIO DECIDENDI:

CONVICTED OF RECKLESS IMPRUDENCE RESULTING IN HOMICIDE (Art. 365, RPC). Specific intent to kill was absent; acts were done in a misguided attempt to heal, but with gross negligence.

■ CULPA IN DANGEROUS RITUALS

- Misguided Motive: Absence of malice converts homicide charge to criminal negligence.
- Inexcusable Lack of Precaution: Untrained individuals performing violent physical rituals are liable under Art. 365.

10. People of the Philippines v. Isabelo Puno and Enrique Amurao

Citation: G.R. No. 97471, February 17, 1993 | 219 SCRA 85

Ponente: Regalado, J.

Subject / Key Concepts: Kidnapping for Ransom (Art. 267, RPC) vs. Robbery with Intimidation / Extortion (Art. 294, RPC); Primary Specific Intent.

FACTS:

Driver and companion held passenger at gunpoint, claimed NPA membership, drove her around the city for hours, extorted two checks for ₱7,000, and allowed her to alight. Convicted of Kidnapping for Ransom.

ISSUES:

Was the temporary detention incidental to extorting money on the spot Kidnapping for Ransom or Robbery with Intimidation?

RULING & RATIO DECIDENDI:

CONVICTED OF ROBBERY WITH INTIMIDATION (Art. 294, Par. 5, RPC). Kidnapping requires primary intent to deprive liberty. Where primary intent is immediate extortion and detention is merely incidental, crime is Robbery.

■ KIDNAPPING VS. EXTORTION/ROBBERY

- Intent to Detain: Kidnapping requires specific intent to lock up/deprive liberty.
- Incidental Restraint: Temporary restraint to extract money immediately is Robbery.

11. People of the Philippines v. Marlon Delim, et al.

Citation: G.R. No. 142773, January 28, 2003 | 396 SCRA 386

Ponente: Callejo, Sr., J.

Subject / Key Concepts: Murder (Art. 248, RPC) vs. Kidnapping with Murder (Art. 267, RPC); Animus Interficiendi; Absorption of Abduction.

FACTS:

Armed men abducted victim from his house, tied his hands, took him away, and his body was found days later with fatal stab wounds. Convicted of Aggravated Kidnapping with Murder and sentenced to Death.

ISSUES:

Is the crime Kidnapping with Murder under Art. 267 or Murder under Art. 248?

RULING & RATIO DECIDENDI:

CONVICTED OF MURDER QUALIFIED BY TREACHERY (Art. 248, RPC). Where primary intent from outset is to kill the victim, abduction is merely preparatory and absorbed into Murder.

■ PRIMARY INTENT: MURDER VS. KIDNAPPING

- Animus Interficiendi at Outset: Abduction to execute a victim is Murder, not Kidnapping with Murder.

12. People of the Philippines v. Vicente Temblor

Citation: G.R. No. 66884, May 28, 1988 | 161 SCRA 623

Ponente: Gutierrez, Jr., J.

Subject / Key Concepts: Murder with Treachery (Art. 248, RPC); Positive Identification vs. Alibi; Proof of Motive Non-Essential.

FACTS:

Accused entered a store pretending to buy cigarettes and suddenly shot store owner at point-blank range, taking his gun. Positive eyewitness identification by victim's wife.

ISSUES:

Is proof of motive necessary when the accused is positively identified? Did sudden attack constitute treachery?

RULING & RATIO DECIDENDI:

CONVICTION FOR MURDER AFFIRMED. Proof of motive is immaterial when identity is established by positive testimony. Feigning to buy cigarettes to disarm victim constitutes Treachery.

■ POSITIVE IDENTIFICATION & MOTIVE

- Immateriality of Motive: Positive identification dispenses with proof of motive.
- Treachery: Sudden, unprovoked attack under guise of harmless transaction.

13. People of the Philippines v. Usman Hassan y Ayun

Citation: G.R. No. L-68969, January 22, 1988 | 157 SCRA 261

Ponente: Sarmiento, J.

Subject / Key Concepts: Suggestive Show-up Identification; Custodial Due Process; Materiality of Absence of Motive.

FACTS:

Illiterate 15-year-old was brought alone to a funeral parlor and shown to grieving family and lone witness. Convicted of Murder based on suggestive identification.

ISSUES:

Is an uncorroborated, suggestive show-up identification at a funeral parlor constitutionally valid?

RULING & RATIO DECIDENDI:

NO. Accused ACQUITTED. Suggestive single-suspect identification violates due process. Where identity is doubtful, total absence of motive supports acquittal.

■ TAINTED IDENTIFICATION & REASONABLE DOUBT

- Show-up Identifications: Pointedly suggestive and untrustworthy.
 - Motive in Doubtful Identity: Lack of motive powerfully reinforces innocence.
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14. United States v. Ah Chong

Citation: 15 Phil. 488 (1910)

Ponente: Carson, J.

Subject / Key Concepts: Mistake of Fact (Ignorantia Facti Excusat); Absence of Dolo; Actus Non Facit Reum Nisi Mens Sit Rea.

FACTS:

Cook awakened in dark room by intruder forcing door, called out twice with no answer, believed he was under attack by burglar, struck with knife fatally wounding roommate playing a prank.

ISSUES:

Is an accused liable for homicide when killing under an honest, non-negligent mistake of fact in putative self-defense?

RULING & RATIO DECIDENDI:

NO. Ah Chong was ACQUITTED under Mistake of Fact doctrine. Act would have been lawful had facts been as believed; intent was innocent; mistake was without fault or negligence.

■ MISTAKE OF FACT DOCTRINE

- 3 Requisites: (1) Act lawful if facts true; (2) Innocent intent; (3) Mistake not due to negligence.

15. People of the Philippines v. Antonio Z. Oanis and Alberto Galanta

Citation: 74 Phil. 257 (1943)

Ponente: Moran, J.

Subject / Key Concepts: Rejection of Mistake of Fact; Fulfillment of Duty (Art. 11, Par. 5); Duty of Prior Inquiry; Murder with Treachery.

FACTS:

Police officers ordered to arrest armed fugitive entered dark room and shot sleeping man with back turned without verifying identity. Deceased was innocent civilian.

ISSUES:

Can officers claim mistake of fact or performance of duty when shooting a sleeping person without verifying identity?

RULING & RATIO DECIDENDI:

NO. Officers convicted of MURDER. Victim was asleep and posed no immediate threat; officers had ample time to inquire. Shooting sleeping civilian exceeds performance of duty and constitutes Treachery.

■ LIMITS ON PERFORMANCE OF DUTY

- Duty of Inquiry: Law enforcers must take reasonable precautions to verify identity before using deadly force.
- Distinction from Ah Chong: No sudden emergency or unprovoked attack existed in Oanis.

16. Jason Ivler y Aguilar v. Hon. Maria Rowena Modesto-San Pedro

Citation: G.R. No. 172716, November 17, 2010 | 635 SCRA 191

Ponente: Carpio, J.

Subject / Key Concepts: Art. 365 Quasi-Offenses; Criminal Negligence is a Crime Itself; Double Jeopardy; Splitting Single Reckless Act Barred.

FACTS:

Following a vehicular collision, Ivler was charged with (1) Reckless Imprudence Resulting in Slight Physical Injuries, and (2) Reckless Imprudence Resulting in Homicide & Damage. Pleaded guilty to first; moved to quash second on Double Jeopardy.

ISSUES:

Does prior conviction for slight physical injuries bar prosecution for homicide arising from the identical negligent vehicular act?

RULING & RATIO DECIDENDI:

YES. Second prosecution BARRED by Double Jeopardy. Reckless imprudence under Art. 365 is a single crime in itself. A single negligent act cannot be split into multiple offenses.

■ IVLER DOCTRINE ON ARTICLE 365 QUASI-OFFENSES

- Single Quasi-Offense: Reckless imprudence is the crime itself, not a mere modality.
- Prohibition on Splitting: One reckless act = One prosecution, regardless of diverse consequences.

17. People of the Philippines v. Gabino Pugay and Benjamin Samson

Citation: G.R. No. 74324, November 17, 1988 | 167 SCRA 439

Ponente: Medialdea, J.

Subject / Key Concepts: Praeter Intentionem (Art. 13, Par. 3, RPC); Absence of Conspiracy; Homicide vs. Reckless Imprudence.

FACTS:

Pugay poured gasoline on a mentally impaired man as a prank; Samson spontaneously struck a match and set victim on fire, causing fatal burns. Both convicted of Murder with Treachery.

ISSUES:

Did accused act in conspiracy? What are their individual criminal liabilities?

RULING & RATIO DECIDENDI:

NO Conspiracy. Individual liability applies. Samson (match striker) guilty of Homicide with mitigating Praeter Intentionem (no intent to cause death). Pugay (gasoline pourer) guilty of Homicide through Reckless Imprudence under Art. 365.

■ PRAETER INTENTIONEM & SPONTANEOUS LIABILITY

- Art. 13(3) Praeter Intentionem: Mitigating when offender did not intend to commit so grave a wrong.
- Individual Acts: In the absence of conspiracy, each actor is judged solely by his own intent and act.

PART III: COMPARATIVE DOCTRINAL REFERENCE MATRIX

Case / Subject	Codal / Statutory Basis	Core Legal Doctrine / Standard	Legal Outcome
People v. Gonzales 183 SCRA 309	Rule 133; Const. Art. III, Sec. 14	Unexplained witness delay destroys credibility; alibi prospers	ACQUITTED
People v. Silvestre & Atienza 56 Phil. 353	Art. 3 & Art. 18, RPC	Passive presence without statutory duty is not criminal omission	ACQUITTED (Silvestre)
Evangelista v. People 338 SCRA 180	Sec. 3(e), RA 3019; Art. 3 RPC	Good faith administrative reliance negates dolo/evident bad faith	ACQUITTED
Rimando v. COMELEC 600 SCRA 389	Nullum Crimen; Omnibus Elect. Code	Strict construction of penal laws; no implied vicarious liability	SET ASIDE
Villareal v. People 664 SCRA 519	Art. 365 in rel. to Art. 249 RPC	Lack of animus interficiendi in hazing converts homicide to Culpa	RECKLESS IMPRUDENCE
Maderazo v. People 503 SCRA 234	Art. 287 (Unjust Vexation); RPC	Extrajudicial padlocking without violence is Unjust Vexation	UNJUST VEXATION
U.S. v. Apostol 14 Phil. 92	Art. 12(4) RPC (Caso Fortuito)	Accident caused by abnormal wind gust during lawful clearing	ACQUITTED
U.S. v. Catolico 18 Phil. 504	Actus non facit reum nisi mens...	Presumed criminal intent rebutted by good faith in disbursing bond	ACQUITTED
People v. Carmen 355 SCRA 267	Art. 365, RPC	Fatal faith healing without intent to kill is Reckless Imprudence	RECKLESS IMPRUDENCE
People v. Puno 219 SCRA 85	Art. 267 vs. Art. 294 RPC	Detention incidental to on-the-spot extortion is Robbery	ROBBERY
People v. Delim 396 SCRA 386	Art. 248 vs. Art. 267 RPC	Abduction with initial intent to execute victim is Murder	MURDER
People v. Temblor 161 SCRA 623	Art. 248, RPC	Positive identification dispenses with motive; sudden attack = treachery	MURDER
People v. Hassan 157 SCRA 261	Art. III, Sec. 12 & 14 Const.	Show-up identification is tainted; lack of motive reinforces doubt	ACQUITTED

U.S. v. Ah Chong 15 Phil. 488	Mistake of Fact; Art. 11(1) RPC	Ignorantia facti excusat: Putative self-defense in dark room	ACQUITTED
People v. Oanis 74 Phil. 257	Art. 11(5) & Art. 248 RPC	Mistake of fact rejected; shooting sleeping man exceeds duty	MURDER
Ivler v. Modesto-San Pedro 635 SCRA 191	Art. 365 RPC; Double Jeopardy	Reckless imprudence is a single crime; splitting charges barred	DOUBLE JEOPARDY BAR
People v. Pugay 167 SCRA 439	Art. 13(3) & Art. 365 RPC	No conspiracy: Match-striker (Praeter intentionem); Pourer (Culpa)	HOMICIDE / CULPA